

Court No. - 3

Case :- WRIT - C No. - 19862 of 2022

Petitioner :- Mohd. Tahir

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Shubham Prakash Gupta, Mukesh Chandra Gupta

Counsel for Respondent :- CSC

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents.

2. This writ petition has been filed praying for the following reliefs :

"A) Issue a writ order or direction in the nature of mandamus directing/commanding to the respondent no. 3 and 4 to correct the electricity bill of the petitioner, as the petitioner has taken the connection on 28.03.2018, and the respondent no. 4 has issued the recovery for a sum of Rs. 1,30,376/- on 29.10.2018 for a period of one year.

B) Issue a writ order or direction in the nature of mandamus directing/commanding to the respondent no. 3 and 4 to decide and take the appropriate action upon the representation filed by the petitioner dated 19.4.2022."

3. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no.4 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

4. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 5.8.2022

A. V. Singh